

CORAM : HON'BLE SHRI JUSTICE S.PUJAHARI

CRLMC No.820 of 2009

Smt. Sukanti Mallick	...	Petitioner
- Versus -		
State of Orissa & others	...	Opp. Parties

ORDER

13. 13.11.2020 In the wake of the pandemic Covid-19, the case is taken up through V.C.

Heard the learned counsel for the petitioner and the learned counsel for the State.

This petition under Section 482 of Cr.P.C. has been filed by the petitioner to set aside the order dated 4.3.2009 passed by the learned S.D.J.M., Udala in G.R. Case No.178 of 2006 refusing her prayer to withdraw the prosecution pending before the learned S.D.J.M., Udala vide G.R. Case No.178 of 2006, inasmuch as pursuant to her complaint sent under Section 156(3) of Cr.P.C., the aforesaid case was registered and after filing of charge sheet in the said case for alleged commission of offences punishable under Sections 448/376/506/109 of the I.P.C. and Section 3 of the S.C. & S.T. (PoA) Act, she does not want to proceed with the prosecution for the reasons that the same would jeopardize the marital life of her victim daughter.

It appears that the aforesaid prayer of the petitioner has been refused by the learned Magistrate on

the ground that the case is triable by the Court of Sessions, as such the court lacks jurisdiction to allow the withdrawal of the prosecution.

Learned counsel appearing for the petitioner submits that the petitioner's daughter, who happens to be the victim in this case, has already been married and disclosure of her married daughter as a victim of rape jeopardize her marital life inasmuch as if the same come to the knowledge of the victim's husband and other in-law members, there is every chance of her marital life being broken. Therefore, he submits that the learned Magistrate could not have refused to allow her to withdraw the prosecution, which was at her instance, assigning reasons which have no sanction of law. Accordingly, it is submitted that for the ends of justice, the order impugned be set aside and the learned S.D.J.M. be directed to allow the prayer for withdrawal of prosecution.

However, learned counsel appearing for the State though does not dispute the fact that the petitioner is the complainant and wants to withdraw the prosecution on the ground stated, but considering the fact that the case is under Section 376 of I.P.C., an offence against the society, submits the same can hardly be a ground for withdrawal of the prosecution by the complainant. Accordingly, he submits that this Criminal Misc. Case is devoid of merit and liable to be dismissed.

Since the aforesaid prosecution has been launched by the State, even if the same was registered at

the instance of the petitioner, the petitioner cannot make a prayer for withdrawal of the case. Therefore, the petition under Section 321 of Cr.P.C. at the instance of the petitioner being incompetent in the aforesaid case, I am not inclined to interfere with the impugned order.

However, if the case has already been committed in the meanwhile and charge has been framed in the aforesaid case, the trial court concerned shall look into the reasons of seeking withdraw and issue summon to the victim for her examination in such manner so that the same shall not expose her as a victim of rape before anyone in her marital home. The Court for this purpose may also give the summons to the petitioner directing her to ensure production of the victim during trial to keep in veil her identity as victim of rape in her matrimonial home. The issue being sensitive, the Court must look into the aforesaid aspect and also take the assistance of Public Prosecutor concerned for the purpose.

Order be communicated to the learned Sessions Judge, Mayurbhanj to do the needful, so that the order is carried out by the trial court. For the purpose, a noting can be made in the charge sheet against the entry of the name of victim witness that summon shall be served on her as per the direction given in the Criminal Misc. Case to obviate the skip of this order by any Presiding Officer while issuing summons to the victim. Besides the same, the learned Sessions Judge may devise any other method, so that this order is carried out by the trial Court.

With the aforesaid order, this CRLMC stands disposed of.

The parties may utilize the copy of this order as per the High Court's Notice No.4587 dated 25.03.2020.

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S.Pujahari, J.